

**Material Transfer Agreement
(for the Supply of Human Tissue Material)**

This Agreement is made by and between:

a) [redacted] whose administrative offices
are located at [redacted] operating through the
branch office [redacted]
[redacted]

and

b) **The University of Auckland** whose administrative offices are located at 22 Princes
Street, Auckland Central, Auckland 1010, New Zealand (the "Recipient Institution")

hereinafter referred to as "the Parties" and each of them being a "Party".

Whereas the Provider Institution and Recipient Institution are collaborating in a study to
explore [redacted] (the "Study") and Provider
Institution now wishes for the Recipient Institution to perform certain analyses/studies
as described in Appendix 1.

This Agreement records the terms under which the Provider Institution will make
available to the Recipient Institution the Material identified in Appendix 2 (the "Material")
collected as part of the [redacted]

The term "Material" means material, other than human gametes or embryos, which
consists of, or includes human cells and which is considered "Relevant Material" for the
purposes of the Human Tissue Act 2004¹ together with related data.

Whereas Provider Institution also intends to transfer to the Recipient Institution data as
further described in Appendix 3 ("Data") collected as part of the [redacted]

The Recipient Institution will hold the Material and Data on the terms of this Agreement
and solely for the purpose of the Study as described in Appendix 1, within the research
group of [redacted] (the "Recipient Scientist").

The Recipient Institution hereby agrees to comply and procure that the Recipient
Scientist and all personnel who work with the Material and Data comply with the
following terms and conditions:

¹ The Human Tissue Act 2004 applies to the "authorised activities" principally the removal, storage and use of
"Relevant Materials" (as defined under the Act, including human cells, tissue and organs, but not cell lines) which
come from a living or deceased person for "Scheduled Purposes" (these are set out in Schedule 1 of the Act,
including, but not limited to, "research in connection with disorders, or the function of the human body", "education
or training relating to human health", and "transplantation").

1. The Recipient Institution will not use the Material for administration to human subjects or human application as that term is defined in the Human Tissue (Quality and Safety for Human Application) Regulations 2007 (or equivalent as each may be replaced or amended from time to time) or for clinical or diagnostic purposes.
2. The Recipient Institution may use the Material and Data solely for the purposes of the Study and as described in Appendix 1, from the date of receipt of the Material. The Recipient Institution will comply fully with all applicable environmental, health and safety laws, the Human Tissue Act 2004 and all Applicable Laws ², rules, regulations, codes of conduct, codes of practice, research governance or ethical guidelines, and/or guidance, directions, decisions, determinations, or other requirements issued, from time to time, by any regulatory authority, that may apply with respect to its handling (including, but not limited to, storage, transport, use, processing, disposal or return) of the Material and all applicable laws, or other requirements issued, from time to time, by any regulatory authority, that may apply to the use, processing, storage, transfer and/or disposal of the Data.
3. The Parties shall use a courier with suitable skill and experience to safely transport the Material in accordance with all Applicable Laws. The provider Institution will bear the cost of carriage and any necessary insurance. The Provider Institution makes no charge for the Material. Risk in and responsibility for the Material shall pass to the Recipient Institution once it is received at its premises. If so requested by the Provider Institution the Recipient Institution shall provide it with written confirmation of the safe receipt of the Materials promptly after their delivery to the Recipient Institution's laboratory.
4. The Recipient Institution understands that the Material may have hazardous properties, contain infectious agents or pose other health and safety risks. Subject to clause 12, the Provider Institution makes no representations and gives no warranties either express or implied in relation to the Material: for example (without limitation), no warranties are given about quality or fitness for a particular purpose, or freedom from infection of the Material. The Provider Institution will not be liable for any use made of the Material by the Recipient Institution. The Recipient Institution will use the Material in accordance with good laboratory practice standards, all due skill and care and with dignity, sensitivity and respect. The Recipient Institution warrants that it will only use, or permit the use of the Material and Data in work that has ethical approval, as stated in Appendix 1.
5. Recipient shall take appropriate measures to ensure a level of security appropriate to the risk, including amongst other things, as appropriate:
 - i. the encryption of the Data;
 - ii. the ability to ensure the on-going confidentiality, integrity, availability and resilience of systems and services for managing and storing the Data;

² Applicable Laws means all laws, rules, regulations, codes of practice, research governance or ethical guidelines, or other requirements of any Regulatory Authority, that may apply to the use of the Material by the Recipient Institution from time to time, including (but not limited to) the Human Tissue Act 2004 or the Human Tissue (Scotland) Act 2006, the Human Tissue (Quality and Safety for Human Application) Regulations 2007, the Human Fertilisation and Embryology Act 1990 (as amended), the EU Tissues and Cells Directive (2004/23/EC) and Commission Directives 2006/17/EC and 2006/86/EC. The Human Tissue Authority Directions and Codes of Practice, and the Medicines for Human Use (Clinical Trials) Regulations 2004, as updated and amended from time to time and, where relevant, the national implementations of the same.

- iii. the ability to restore the availability and access to the Data in a timely manner in the event of a physical or technical incident; and
 - iv. having and implementing a process for regularly testing, assessing and evaluating the effectiveness of technical and organisational measures for ensuring the security of the management and storage of the Data.
6. The Recipient shall keep all of the Data secure from any unauthorised or accidental use, access, disclosure, damage, loss or destruction. The Recipient will not permit the Data or any part of it to come into the possession or control of any individual other than those of its employees or students involved in the Research who are under the direct supervision of the Recipient Scientist. The Recipient shall comply with any request from the Provider to amend, rectify, transfer, block or destroy any of the Data.
7. Except to the extent prohibited by law and subject to clause 12, the Recipient Institution assumes all liability for damages which may arise from its receipt, use, storage or disposal of the Material and/or Data. The maximum aggregate liability of the Recipient Institution to the Provider in relation to this Agreement, including any under indemnity, is limited to an amount equal to NZD 100,000 but only to the extent that such liability can be limited in law and such limitation shall not apply to any liability arising from the Recipient Institution's wilful misconduct or gross negligence, or any misuse of the Material or Data. The Provider Institution will not be liable to the Recipient Institution for any loss, claim or demand made by the Recipient Institution, or made against the Recipient Institution by any other party, due to or arising from its use, storage or disposal of the Material and/or Data by the Recipient Institution, except to the extent the law otherwise requires.
8. The Recipient Institution shall indemnify the Providing Institution, the Providing Institution's employees in full against all liability, loss, damages or expenses (including legal and other professional fees and expenses) from or in connection with the handling, storage or disposal of the Material and/or Data by or on behalf of the University.
9. The liability of either party for any breach of this Agreement, or arising in any other way out of the subject matter of this Agreement, will not extend to loss of business or profit, or to any indirect or consequential damages or losses.
10. The Recipient Institution agrees to obtain the written consent of the Provider Institution if there is any material change to the proposed use of the Material in the Study as described in Appendix 1.
11. The Parties will aim to co-author any publications arising from this Agreement. For publications arising from use of the Material and/or Data not authored by the Provider Institution, the Recipient Scientist will acknowledge the Provider Institution as the source of the Material and/or Data and will provide the Provider Institution with a copy of any publications describing work carried out using the Material and/or Data. If the Recipient Scientist wishes to include in a publication any information which has been provided by the Provider Institution with the Material and which was clearly marked as "confidential" and "proprietary" at the point of disclosure ("Confidential Information"), the Recipient Scientist must obtain written permission from the Provider Institution, providing a copy of the text to

allow a reasonable period for review before publication takes place, such permission not to be unreasonably withheld or delayed. If so requested by the Provider Institution, the Recipient Institution shall provide the Provider Institution with a confidential copy of the findings of the Study.

12. The Provider Institution undertakes that where required by Applicable Laws the Material has been obtained from humans with the appropriate consent as required by the Human Tissue Act 2004 and with ethical approval. The Provider Institution retains ownership or custodian rights in the Materials and Data (and any unmodified derivatives of the Materials) it provides as part of this Agreement and hereby grants to the Recipient Institution a non-exclusive, royalty-free licence to use the Material and Data for the Study only.
13. The Recipient Institution shall keep all information relating to the Material and Data confidential and shall not use it for any purpose other than as provided in this Agreement. This shall not apply to information to the extent it is in the public domain, was or becomes known without any obligation of confidence from a source other than the Provider Institution, was independently developed by the Recipient Institution or is required to be disclosed by law.
14. Any results generated in the course of the Study from the Recipient's use of the Materials and/or Data shall be jointly owned by the Parties. Each Party may use the results for its own teaching and non-commercial research purposes, provided that such use is subject to the prior written consent of the other Party. Each Party retains ownership of all rights (including Intellectual Property Rights) in its information, materials and other items existing prior to or developed independently of this Agreement.
15. The Recipient undertakes not to attempt to identify or contact any individual to whom the Data relates ("Data Subject"). In the event that the Recipient inadvertently identifies any Data Subject, then it will notify the Provider immediately setting out in reasonable detail the circumstances by which it happened and will then comply with all applicable laws that may apply to the use, processing, storage, transfer and/or disposal of the Data in question, including, without limitation, the Data Protection Act (2018) and the UK General Data Protection Regulation ("UK GDPR") ("Data Protection Laws"), in relation to the use, processing, storage, transfer and/or disposal of the Data under this Agreement. Other than such disclosure to the Provider, the Recipient shall not share the identification of that Data Subject with any other person or attempt to contact the Data Subject themselves.
16. Nothing included in this Agreement shall prevent the Provider Institution from being able to distribute the Material and/or Data to other entities as described in Appendix 1. If, as per the details included in Appendix 1, the Material and/or Data is to be transferred to another institution for the purposes of the Study, the responsibility for compliance with the terms of this Agreement rests with the Recipient Institution.
17. The Provider Institution has the right to terminate this agreement forthwith at any time by means of written notice to Recipient Institution if the ethical approval is withdrawn or if the Recipient Institution is in breach of this Agreement. In the case of termination or expiration of this Agreement, the Recipient Institution shall immediately discontinue all use of the Material and Data, and at the Provider Institution's discretion, promptly return, retain, transfer or destroy all unused

Material and Data, and provide written confirmation that this has been completed. If requested, the Recipient Institution must certify that it has complied in full with any such requirement of the Provider Institution. Should an individual donor or their next of kin rescind their consent, the Provider Institution will require and the Recipient Institution agrees to discontinue using the appropriately identified sample and return or destroy it in accordance with the Provider Institution's instructions.

18. This Agreement shall not be amended except in writing by duly authorised signatories of the Parties hereto.
19. The Parties agree that this Agreement and any subsequent amendments to it shall be binding on their successors in title, and assigns, and undertake to take all necessary steps to ensure that they are so bound.
20. This Agreement does not create any right enforceable by any person not a Party to it.
21. This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and no statements or representations made by any Party have been relied upon by the other in entering into this Agreement.
22. The rights and obligations of the Parties are personal and may not be assigned at any time without the prior written consent of the other Party which consent shall not be unreasonably withheld; provided that it shall be a requirement in all cases of assignation that the assignee undertakes to perform all outstanding obligations of the assignor as though the assignee had been an original party hereto.
23. Neither party shall use the names or trademarks of the other party or of any of the other party's affiliated entities in any advertising, publicity, endorsement, or promotion unless the other party has provided prior written consent for the particular use contemplated. The terms of this section survive the termination, expiration, non-renewal, or rescission of this Agreement
24. This Agreement shall be governed by English Law, and the English Courts shall have exclusive jurisdiction to deal with any dispute which may arise out of or in connection with this Letter Agreement.
25. This Agreement shall be effective as of the date of the last signature below and shall terminate upon termination of the Study in Appendix 1 or 2 years from the effective date, whichever is sooner.

Accepted and Agreed on behalf of

[REDACTED]

Name: [REDACTED]

Position: [REDACTED]

Signature [REDACTED]

Date: 10/13/2025

Accepted and Agreed on behalf of

University of Auckland

Name: [REDACTED]

Position: [REDACTED] [REDACTED]

Signature: [REDACTED]

Date: 13 October 2025

[REDACTED]